ACTS OF THE TWENTY-EIGHTH CONGRESS

OF THE

UNITED STATES,

Passed at the second session, which was begun and held at the City of Washington, in the district of Columbia, on Monday, the 2d day of December, 1844, *and ended the 3d day of March,* 1845.

JOHN TYLER, President of the United States. WILLIE P. MANGUM, President of the Senate, pro tempore. JOHN W. JONES, Speaker of the House of Representatives.

STATUTE II.

CHAP. I.—*An Act to establish a uniform time for holding elections for electors of President and Vice President in all the States of the Union.*(a)

Jan. 23, 1845.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That the electors of President and Vice President shall be appointed in each State on the Tuesday next after the first Monday in the month of November of the year in which they are to be appointed: *Provided,* That each State may by law provide for the filling of any vacancy or vacancies which may occur in its college of electors when such college meets to give its electoral vote: *And provided, also,* when any State shall have held an election for the purpose of choosing electors, and shall fail to make a choice on the day aforesaid, then the electors may be appointed on a subsequent day in such manner as the State shall by law provide.

Election day fixed.

Vacancies.

In case of no election.

APPROVED, January 23, 1845.

STATUTE II.

Feb. 4, 1845.

CHAP. II.—*An Act to correct a clerical error in the act supplementary to an act to regulate arrests on mesne process in the District of Columbia, and to amend the title thereof.*

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That the act entitled "An act supplementary to an act entitled 'An act to regulate arrests on mesne process in the District of Columbia,'" approved June seventeenth, eighteen hundred and forty-four, be corrected, so as to insert, between the words "and" and "in," in the sixth line, the words "in cases where the principal of the debt exceeds that amount, no person shall be imprisoned as aforesaid, except."

Correction of the error.

Act of June 17, 1844, ch. 100.

SEC. 2. *And be it further enacted,* That the title of the said act be amended by adding the words: "and to abolish imprisonment for debt in the District of Columbia, except in cases of fraud."

Title amended.

SEC. 3. *And be it further enacted,* That nothing in the said act pass-

---

(a) Election of President and Vice President of the United States:

Constitution of the United States, art. 2, sec. 1, vol. 1, 15, 16. Twelfth amendment to the constitution of the United States, vol. 1, 22.

An act relative to the election of a President and Vice President of the United States, and declaring the officer who shall act as President in case of vacancies in the office of both President and Vice President; March 1, 1792, chap. 8.

An act supplementary to the act entitled "An act relative to the election of a President and Vice President of the United States, and declaring the officer who shall act as President, in case of vacancies in the office of both President and Vice President; March 26, 1804, chap. 50.

AUTHENTICATED U.S. GOVERNMENT INFORMATION GPO